

On Housing Relations - Private Lease Extract

Law of the Republic of Kazakhstan “On Housing Relations” - Private Lease Extract

Source: Law dated 16 April 1997 No. 94 (unofficial translation). This extract contains only the provisions relevant to private lease/rental of dwellings between individuals (landlord-tenant, tenant-subtenant). All state housing stock, corporate housing, condominium governance, and public-body provisions have been removed.

DEFINITIONS (Article 2, selected)

- rental house - a multi-apartment residential building, owned by an individual or a legal entity, the apartments in which are intended for rent.
- lender (landlord) - a party to the lease contract for a dwelling, who is the owner of the dwelling or a person authorized by the owner to rent out the dwelling.
- tenant - a party to a dwelling lease contract, who receives a dwelling or a part of it for use.
- private housing fund - dwellings owned by individuals or non-state legal entities.
- sub-tenant - a party to a dwelling sublease contract, receiving a dwelling or part of it for use from a tenant.
- lease/rent of dwelling place - provision of a dwelling place or part thereof to tenant (lessee) in permanent or temporary ownership and for a fee.
- dwelling rental contract - a contract according to which the lender grants the right to use the dwelling or part of it to the tenant for a fee.
- dwelling sublease contract - a contract between the parties, according to which the sub-tenant receives the right to use the dwelling or part of it for a fee.

Article 21. Family members of dwelling place owner (para.3)

3. The provisions of this Article shall apply to the family members of the tenant (subtenant).

Article 22. Basic rights and obligations of family members of dwelling place owners

1. Family members of owners settled in dwelling places belonging to that owner shall have the equal right to use a dwelling place, unless otherwise stipulated during their settlement. They may settle their minors in a dwelling place provided to them by the owner. Settlement of other family members shall be allowed only with the consent of the owner.

In case of termination of family relations with the owner, the former family members may use a dwelling place with tenants' rights without specification of term of lease, unless otherwise provided

by written agreement with the dwelling place owner. By this, the former family members shall be obliged to share in dwelling place maintenance costs and payments for utility services.

2. Family members of a dwelling place owner may demand the elimination of violations of their rights by any person committing the violation, including the owner.
3. Adult family members (former family members) of the owner shall bear joint financial responsibility for obligations arising from their use of a housing unit.

CHAPTER 4. Leasing of dwelling places in private housing stock

Article 23. Lease of dwelling place by owner to other persons

1. The owner may lease a dwelling place, in which he/she lives, or a dwelling place the primary purpose of which shall be provided to tenants for permanent or temporary residence.
 2. Living conditions (term, amount of lease payment, distribution of repair obligations, grounds for eviction of tenants etc.) shall be determined by this Law and by the agreement between a lender and tenant.
 3. The persons to whom a dwelling place is leased shall be chosen by the owner.
- 3-1. Owner or person authorized by owner for lease a dwelling place shall be obliged to register the persons living in the leased dwelling place, in the manner prescribed by the legislation of the Republic of Kazakhstan.

Article 24. Terms of lease of dwelling place in which owner does not reside

1. A private housing stock dwelling place in which the owner resides may be provided to another person for lease under a written agreement.
2. A dwelling or a separate room (rooms) suitable for living, meeting construction, sanitary and epidemiological, fire-prevention and other mandatory requirements can be provided for rent.
3. The tenant shall have the right to move his family members, sub-tenants and temporary residents into the rented dwelling, unless otherwise provided by the lease contract.
4. The tenant shall have the right to leave the rented dwelling place for up to six months, unless otherwise provided by the contract. In case of a longer absence, the contract remains valid only with the consent of the lender.
5. The lease contract is terminated upon the expiration of the period established by the parties or occurrence of the circumstance specified in the contract. Early termination of the contract at the request of the lender shall be allowed if the tenant does not comply with the terms of the lease contract, as well as on other grounds and conditions provided for by this Law.

A contract that does not provide for a period of validity and other grounds for termination may be terminated by the lender at any time with warning of a tenant at least three months in advance. Upon termination or dissolution of the contract, the tenant, together with all persons living with him/her, shall be subject to dispossession without providing another dwelling.

6. If the tenant cancels the agreement early, he/she must notify the lender accordingly no less than one month before, or pay the charge specified by the agreement for that month. The specified term shall be respectively reduced if less than one month elapses before ensuing of

the term provided by the agreement or if other circumstances that terminate the validity of the agreement occur.

7. A family member of the tenant, living with him/her, in accordance with the terms of the lease contract, shall acquire the same right to use the dwelling as the tenant himself/herself, unless otherwise agreed between him/her and the tenant when the family member moved in. The circle of family members shall be determined in accordance with Article 21 of this Law.
8. When the right of ownership of a dwelling is transferred to another person, the lease contract shall remain in force for a new owner, unless otherwise provided by the contract between the tenant and the owner who rented the dwelling.

Article 25. Conditions of lease of dwelling place, in which the owner permanently resides

1. In a dwelling in which the owner permanently resides, a tenant may be provided with a dwelling or part of it, including an adjoining room or part of a room, for rent. If several owners live in a dwelling, the consent of all owners shall be required to rent out the dwelling.
2. Tenants shall not have the right to settle other persons, including their family members, without the owners' agreement.
3. Upon the tenancy period expiry, the tenant does not acquire the right to renew the contract and, on the landlord's demand, shall move out without provision of another dwelling. The lease agreement may be terminated on the landlord's demand ahead of schedule if the tenant fails to comply with the lease agreement terms, also in the presence of justifiable unforeseen circumstances.
4. Lease agreements concluded without specification of term may be terminated by a lender at any time without explanation of reasons. The lender must notify the tenant of termination of the lease agreement not less than one month before.
5. Tenants shall have the right to cancel the lease agreement in advance and without notification, unless the agreement provides otherwise.

Article 26. Legal status of sub-tenants and temporary residents

1. The subtenants' accommodation conditions, specifically duration of residence, the amount and order of payment, shall be determined by the agreement between the tenant of the dwelling and the subtenant.
2. The sublease agreement shall be terminated upon expiry of the term established by the parties, or in circumstances mentioned in the agreement.

Early termination of the agreement at the tenant's request is possible if the sub-tenant violates the agreement, and if the agreement does not establish the term or other grounds of termination, at any time provided the sub-tenant is given not less than one month's notice.

3. A sub-tenant shall have the right to cancel the agreement at any time, unless otherwise provided by the sublease agreement.
4. Upon termination of the sublease agreement or its dissolution by the tenant, the subtenant shall move out without provision of another dwelling.

5. The tenant has the right to move temporary residents into the dwelling without concluding a sublease agreement with them. The living conditions of temporary residents are determined by the tenant. Temporary residents shall move out without provision of another dwelling at the request of the tenant at any time with at least seven working days' notice.

Article 27. Eviction of sub-tenants and temporary residents in case of termination of lease agreement

Upon termination of the lease contract, the sublease contract terminates at the same time. Subtenants and temporary residents, upon termination of the lease contract, shall be subject to dispossession without providing another dwelling.

Article 36. Obligations of the tenant (subtenant) (selected - behavioral obligations only)

1. The tenant (subtenant) of an apartment shall have the right to permanently or temporarily own or use an apartment (or part thereof) only on the basis of a lease (sublease) or rental agreement.
2. The tenant (subtenant) of an apartment, in addition to the obligations established by the laws of the Republic of Kazakhstan, shall bear other obligations, including:
 - compliance with noise regulations, including the prohibition on carrying out, within the apartment or outside thereof, works accompanied by noise not related to urgent necessity, which hinder the normal rest and peace of citizens during specified hours;
 - consumption of tobacco products, including heated tobacco products, hookah tobacco, hookah mixtures, and tobacco heating systems, only in specially designated areas;
 - compliance with construction, sanitary, environmental, fire safety, and other mandatory standards and regulations established by the legislation of the Republic of Kazakhstan.